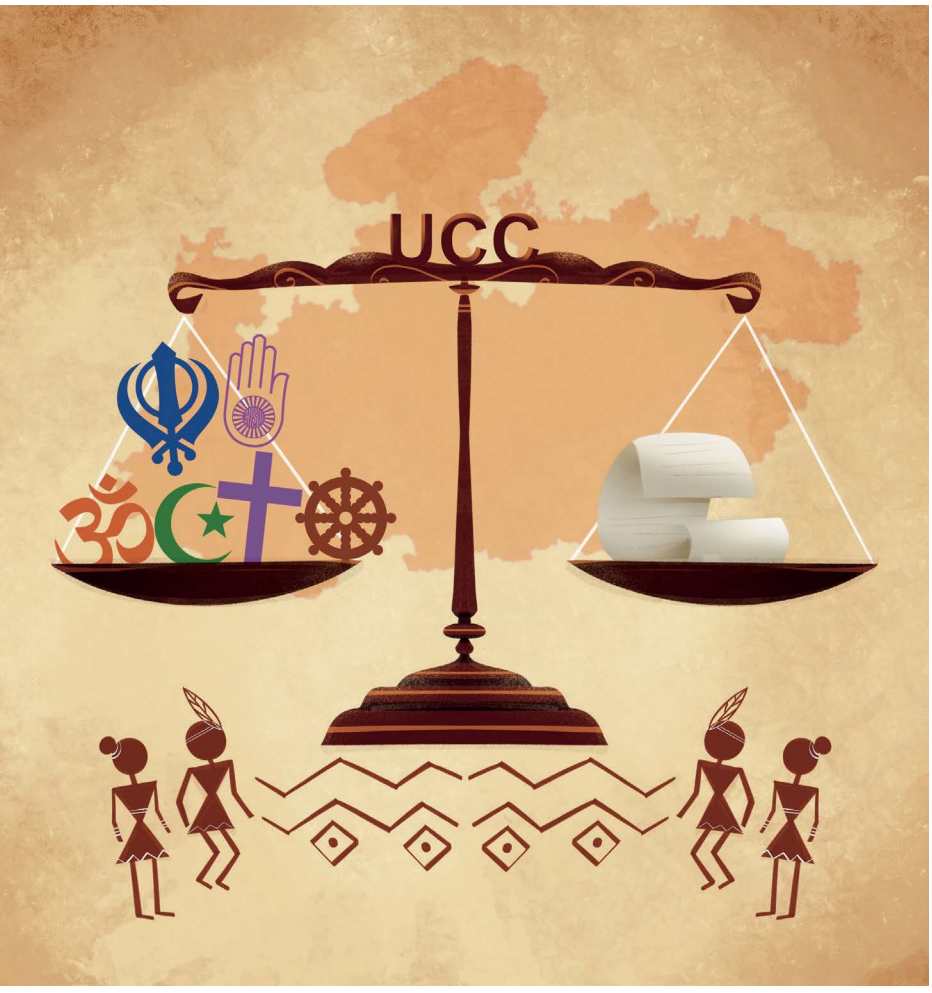


MADHYA PRADESH

NOT SUCH A UNIFORM CODE

After Uttarakhand and Gujarat, MP passes a Uniform Civil Code, with exceptions for its tribal people

By **Rahul Noronha**

WITH COMPETITORS LIKE Maharashtra, Assam and Chhattisgarh still in the drafting stages, Madhya Pradesh has won the race among saffron-ruled states to be the third one in the country to pass a Uniform Civil Code (UCC). On July 21, the Mohan Yadav-led cabinet passed the UCC Bill in the monsoon session of the assembly. With the ruling Bharatiya Janata Party (BJP) at 164 seats in a House of 230, the legislative passage was smooth. The next step is presidential assent. Uttarakhand's UCC, the beta prototype, has received it; Gujarat's version still awaits it.

Madhya Pradesh's bill shares the core features of its two predecessors—a ban on polygamy, mandatory registration of live-in relationships et al—but, like Gujarat, it's not a carbon copy of Uttarakhand's UCC. Rather, some parts of it are tailored to fit the state's unique social landscape, especially the fact that 21 per cent of its population is tribal.

A founding irony in a code that purports to be uniform is that an exception has to be built into it at the outset. This is to exclude the Scheduled Tribes: the customary practices of indigenous communities are constitutionally protected. There was some speculation that Madhya Pradesh's UCC would not extend that licence to tribals who have converted, but the final bill had no such 'exemption within an exemption'.

WHOSE DOST IS IT ANYWAY?

Yadav used the optics to send a political message—with the choice of venue for the cabinet meeting. Jagdishpur, formerly Islam Nagar, was the first capital of Bhopal state, as established in the early 18th century by Afghan adventurer Dost Mohammed Khan, an Orakzai Pathan who had fled the frontier after committing a crime. It was he who constructed Chaman Mahal, where the cabinet meeting was held. Islam Nagar had earlier become one among many places that have been renamed in the past few years when it transitioned to being Jagdishpur in 2023.

Speaking before the meeting, Yadav alluded to the region's history, including its original identity as a Gond realm. "Jagdishpur has been witness to a long struggle, rich heritage and civilisation and is a symbol of Gond, Scindia and Rajput rule," said the CM, omitting the connection with the Bhopal state, ruled by a line of nawabs and begums. "The cabinet meeting being hosted in Jagdishpur is a mark of respect to the rich history of the place," he added.

Doubtless, the omission in the realm of names was meant to reflect the erasure from the list of exceptions in civil law. Here, this bill is identical to the previous two UCCs. The six-member committee formed in April-end to draft it was also chaired by the same personage: retired Supreme Court judge Ranjana Desai.

The state government expects

Illustration by **SIDDHANT JUMDE**